



कर्मचारी भविष्य निधि संगठन
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)

EMPLOYEES' PROVIDENT FUND ORGANISATION

(Ministry of Labour & Employment, Govt. of India)

मुख्य कार्यालय / Head Office

भविष्य निधि भवन, 14-भोकाजी कामा प्लेस, नई दिल्ली-110 066

Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

LC-4/HC/Madras(TN)2010/pt. /27942

Date:- 21.10.2015

23 OCT 2015

To

All Addl. Central P.F Commissioners(Zones)

Subject: - Filing of Counter affidavits/Written Statement in the cases under EPF & MP Act, 1952- regarding.

Reference:- Ministry's letter No. S-35018/8/2015-SS.II dated 21.08.2015.

Sir,

Please refer to the reference(copy enclosed) received from Ministry of Labour & Employment on the above cited subject.

2. In this regard, Ministry has sought the information regarding cases where Union of India, Secretary(MOL&E) are impleaded as a party, in the format given at point No. 4 of above mentioned letter.

3. Accordingly it is requested to arrange to furnish the compiled information with respect to the offices under your jurisdiction at the earliest, so that the desired information could be provided to Ministry of Labour & Employment.

Enclosure: As Above

Yours faithfully,

(M.P.Varghese)

Addl. Central P.F Commissioner-I(Legal)

21/10/15

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(M)

25/8/15
26/8/15

No. S-35018/8/2015-SS.II
Government of India
Ministry of Labour & Employment

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26/08/2015

राजेश बंगाल
अ. के. भ. नि. आयुक्त

Acc-1/leg

Shram Shakti Bhawan, Rafi Marg
New Delhi, dated 21st August, 2015

To,

The Central Provident Fund Commissioner,
Employees' Provident Fund Organisation,
14, Bhikaji Cama Place,
New Delhi-110066.

अ. के. भ. नि. आयुक्त (मुख्यालय)

डायरी सं. 352

दिनांक 26/08/15

26/08/15
एम. पी. वॉलेस / एम. पी. वॉलेस
अपर के. भ. नि. आयुक्त (विशेष)
Addl. CPFO (Legal)

के. भ. नि. आ. के. नि. स.
प्राप्त किया
25 AUG 2015
डायरी सं. 100919
25/8

Subject: Filing of Counter Affidavit/Written Statement in the cases under EPF&MF Act, 1952-Reg.

Sir,

I am directed to refer to this Ministry's Letter No. S-35018/4/2014-SS.II dated 12th March, 2014 vide which comprehensive guidelines were issued to handle the court case where UOI is a proforma party and taking necessary action to delete the name of UOI by filing appropriate petition under the prescribed law. This Ministry has also issued specific direction to protect the interest of UOI before the Hon'ble Court in such cases wherein cause of action lies with the EPFO.

2. However, draft counter is WP No. 3120 of 2013, Tamilnadu Construction and Unorganised Workers Federation Vs UOI & Ors was sent to this Ministry for approval even though the required action lied with EPFO.

3. EPFO is, therefore, Once again requested to ensure immediate filing of Counter Affidavit/ Written Statement before the Hon'ble Court in such cases wherein UOI, Secretary. MoL&E & Ors are respondents where action is required to be taken by EPFO.

अपर के. भ. नि. आयुक्त (लीगल) का सचिवालय

डायरी सं. 2
दिनांक 26-08-2015

Sh. Shikhar
Sh. Manish

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Immediate. Pls. discuss.
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4. Further, the following information may also be forwarded to this Ministry for necessary action:

Sl. No.	No. of cases in which UOI, Sec. MoL&E & Ors are respondents while cause of action lies with EPFO.	No. of cases in which counter affidavit/ written statement have been filed wherein UOI, Sec. MoLE & Ors are respondents	No. of cases in which I.A/M.A have been filed to expunge the name of UOI & Secretary, MoL&E where action lies with EPFO and outcome thereof.

Yours faithfully,



(Subhash Kumar)

Under Secretary to the Govt. of India